

STATE OF NEW YORK

5851--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. BEEPHAN -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize the town of Union Vale, county of Dutchess, to alienate and discontinue the use of certain parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the town of Union
2 Vale, in the county of Dutchess, acting by and through its governing
3 body, and upon such terms and conditions as determined by such body, is
4 hereby authorized to discontinue as parklands and to lease at fair
5 market value to Homeland Towers, LLC for a term not to exceed thirty
6 years the lands more particularly described in section three of this act
7 for the placement and operation of a wireless communication tower.

8 § 2. The authorization provided in section one of this act shall be
9 effective only upon the condition that the town of Union Vale dedicates
10 an amount equal to or greater than the fair market value of the park-
11 lands being discontinued towards the acquisition of new parklands and/or
12 towards capital improvements to existing parkland and recreational
13 facilities.

14 § 3. The lands authorized by section one of this act to be discontin-
15 ued as parklands and leased are described as follows:

16 LEASE AREA A -

17 Said Lease Area A containing approximately 5,250 square feet or .120
18 acres of land within a parcel, located East of Deforest Lane in the Town
19 of Beekman, County of Dutchess, New York. Located within the land of
20 grantors described in book 1377, page 66. More particularly described
21 as follows:

22 Beginning at the Northwesterly Corner of Lease Area A herein
23 described; said point being S. 46° 54' 51" E, 395.94 feet from a north-
24 west corner of the parent parcel to the place and point of beginning;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 Thence S 80° 09' 23" W for 75 feet to a point; Thence S 09° 05' 97" E
2 for 70 feet to a point; Thence N 80° 09' 23" E for 75 feet to a point;
3 Thence N 09° 05' 97" W for 70 feet to the point of beginning.
4 Parcel Contains: 5,250.00 square feet (0.120 acre) more or less of
5 land

6 EASEMENT AREA A -

7 BEEKMAN II 43 DEFOREST LANE, BEEKMAN, NY

8 A 12-foot-wide by 470-foot easement for vehicular and pedestrian
9 access to Lease Area A and for utilities to service the structures in
10 Lease Area A along the existing roadway which runs from Deforest Lane to
11 the Lease Area A, said easement area being described as follows:

12 A certain Access Drive located East of Deforest Lane in the Town of
13 Beekman, County of Dutchess, New York; containing 5621.637 square feet
14 (0.129 acre) more or less of land. Located within land of the grantors
15 described in book 1377 page 66. Said parcel is described as follows:

16 Beginning at a point on the west bounds of a Lease Area, said point
17 being N 09°50'37" E a distance of 26.86 feet from the southwest corner
18 of said Lease Area; running thence westerly along the southerly bounds
19 of said Access Drive the following nine courses and distances:

20 1) on a curve to the left, with a radius of 10.00 feet, an arc length
21 of 15.71 feet and a Delta angle of 89°59'46";

22 2) N 80°09'23" W 11.41 feet to a point, thence;

23 3) on a curve to the left, with a radius of 94.00 feet, an arc length
24 of 9.52 feet and a Delta angle of 05°48'13";

25 4) N 85°57'35" W 101.13 feet to a point, thence;

26 5) on a curve to the left, with a radius of 150.00 feet, an arc length
27 of 49.82 feet and a Delta angle of 19°01'44";

28 6) S 75°00'40" W 165.12 feet to a point, thence;

29 7) on a curve to the left, with a radius of 33.08 feet, an arc length
30 of 25.82 feet and a Delta angle of 44°43'07";

31 8) S 30°17'21" W 39.62 feet to a point, thence;

32 9) on a curve to the right, with a radius of 77.45 feet, an arc length
33 of 49.96 feet and a Delta angle of 36°57'24";

34 To a point on the easterly edge of Deforest Lane; running thence N
35 14°04'26" W along the easterly edge of DeForest Lane a distance of 12.09
36 feet to a point; continuing thence easterly along the northerly bounds
37 of said Access Drive the following nine courses and distances:

38 1) on a curve to the left, with a radius of 65.45 feet, an arc length
39 of 40.85 feet and a Delta angle of 35°45'39";

40 2) N 30°17'21" E 39.16 feet to a point, thence;

41 3) on a curve to the right, with a radius of 45.08 feet, an arc length
42 of 35.18 feet and a Delta angle of 44°43'13";

43 4) N 75°00'38" E 165.12 feet to a point, thence;

44 5) on a curve to the right, with a radius of 162.00 feet, an arc
45 length of 53.80 feet and a Delta angle of 19°01'44";

46 6) S 85°57'35" E 101.13 feet to a point, thence;

47 7) on a curve to the right, with a radius of 106.00 feet, an arc
48 length of 10.74 feet and a Delta angle of 05°48'13";

49 8) S 80°09'23" E 11.41 feet to a point, thence;

50 9) on a curve to the left, with a radius of 10.00 feet, an arc length
51 of 15.71 feet and a Delta angle of 90°00'00";

52 To a point on the west bounds of said Lease Area; running thence South
53 09°50'37" West along the west bounds of said Lease Area a distance of
54 32.00 feet to the point of beginning;

55 Parcel Contains: 5,621.637 square feet (0.129 acre) more or less of
56 land

1 § 4. Should the lands described in section three of this act cease to
2 be used for the purposes described in section one of this act, the lease
3 shall terminate and those lands shall revert to the town of Union Vale
4 for public park and recreational purposes. At the time of such rever-
5 sion, the removal of such wireless communication tower shall take place
6 and the property shall be returned to its previous state, consistent
7 with park and recreational purposes.

8 § 5. In the event that the town of Union Vale received any funding
9 support or assistance from the federal government for the purchase,
10 maintenance or improvement of the parklands set forth in section three
11 of this act, the discontinuance and alienation of such parkland author-
12 ized by the provisions of this act shall not occur until the town of
13 Union Vale has complied with any federal requirements pertaining to the
14 alienation or conversion of parkland, including satisfying the secretary
15 of the interior that the alienation or conversion complies with all
16 conditions which the secretary of the interior deems necessary to assure
17 the substitution of other lands shall be equivalent in fair market value
18 and usefulness to the lands being alienated or converted.

19 § 6. This act shall take effect immediately.